

Senate File 167

S-3067

1 Amend the House amendment, S-3004, to Senate File 167, as
2 passed by the Senate, as follows:

3 1. By striking page 1, line 1, through page 8, line 34, and
4 inserting:

5 <Amend Senate File 167, as passed by the Senate, as follows:

6 1. By striking everything after the enacting clause and
7 inserting:

8

<DIVISION I

9 STATE AND CATEGORICAL PERCENTS OF GROWTH AND PROPERTY TAX
10 REPLACEMENT PAYMENTS

11 Section 1. Section 257.8, subsections 1 and 2, Code 2025,
12 are amended to read as follows:

13 1. *State percent of growth.* ~~The state percent of growth for~~
14 ~~the budget year beginning July 1, 2022, is two and one-half~~
15 ~~percent.~~ The state percent of growth for the budget year
16 beginning July 1, 2023, is three percent. The state percent of
17 growth for the budget year beginning July 1, 2024, is two and
18 one-half percent. The state percent of growth for the budget
19 year beginning July 1, 2025, is two percent. The state percent
20 of growth for each subsequent budget year shall be established
21 by statute which shall be enacted within thirty days of the
22 transmission of the governor's budget required by February
23 1 under [section 8.21](#) during the regular legislative session
24 beginning in the base year.

25 2. *Categorical state percent of growth.* ~~The categorical~~
26 ~~state percent of growth for the budget year beginning July~~
27 ~~1, 2022, is two and one-half percent.~~ The categorical state
28 percent of growth for the budget year beginning July 1, 2023,
29 is three percent. The categorical state percent of growth for
30 the budget year beginning July 1, 2024, is two and one-half
31 percent. The categorical state percent of growth for the
32 budget year beginning July 1, 2025, is two percent, except for
33 calculating the appropriation to the transportation equity
34 fund under section 257.16C. The categorical state percent
35 of growth for purposes of calculating the appropriation to

1 the transportation equity fund under section 257.16C for the
2 budget year beginning July 1, 2025, is five percent. The
3 categorical state percent of growth for each budget year shall
4 be established by statute which shall be enacted within thirty
5 days of the transmission of the governor's budget required by
6 February 1 under [section 8.21](#) during the regular legislative
7 session beginning in the base year. The categorical state
8 percent of growth may include state percents of growth for
9 the teacher salary supplement, the professional development
10 supplement, the early intervention supplement, the teacher
11 leadership supplement, and for budget years beginning on or
12 after July 1, 2020, transportation equity aid payments under
13 section 257.16C.

14 Sec. 2. Section 257.16B, subsections 1 and 2, Code 2025, are
15 amended to read as follows:

16 1. For each fiscal year beginning on or after July 1, 2022
17 2023, there is appropriated from the general fund of the state
18 to the department of education an amount necessary to make all
19 school district property tax replacement payments under this
20 section, as calculated in [subsection 2](#).

21 2. ~~a. (1) For the budget year beginning July 1, 2022,~~
22 ~~the amount of each school district's property tax replacement~~
23 ~~payment shall be the product of the school district's weighted~~
24 ~~enrollment for the budget year multiplied by the per pupil~~
25 ~~property tax replacement amount for the budget year calculated~~
26 ~~under subparagraph (2).~~

27 ~~(2) The per pupil property tax replacement amount for the~~
28 ~~budget year beginning July 1, 2022, is equal to the sum of one~~
29 ~~hundred fifty-three dollars plus the difference between the~~
30 ~~following:~~

31 ~~(a) The regular program state cost per pupil for the budget~~
32 ~~year beginning July 1, 2022, multiplied by one hundred percent~~
33 ~~less the regular program foundation base per pupil percentage~~
34 ~~pursuant to [section 257.1](#) for the budget year beginning July~~
35 ~~1, 2022.~~

1 ~~(b) The regular program state cost per pupil for the budget~~
2 ~~year beginning July 1, 2021, multiplied by one hundred percent~~
3 ~~less the regular program foundation base per pupil percentage~~
4 ~~pursuant to [section 257.1](#) for the budget year beginning July~~
5 ~~1, 2022.~~

6 ~~b.~~ a. (1) For the budget year beginning July 1, 2023,
7 the amount of each school district's property tax replacement
8 payment shall be the product of the school district's weighted
9 enrollment for the budget year multiplied by the per pupil
10 property tax replacement amount for the budget year calculated
11 under subparagraph (2).

12 (2) The per pupil property tax replacement amount for the
13 budget year beginning July 1, 2023, is equal to the sum of one
14 hundred fifty-three dollars plus the difference between the
15 following:

16 (a) The regular program state cost per pupil for the budget
17 year beginning July 1, 2023, multiplied by one hundred percent
18 less the regular program foundation base per pupil percentage
19 pursuant to [section 257.1](#) for the budget year beginning July
20 1, 2023.

21 (b) The regular program state cost per pupil for the budget
22 year beginning July 1, 2021, multiplied by one hundred percent
23 less the regular program foundation base per pupil percentage
24 pursuant to [section 257.1](#) for the budget year beginning July
25 1, 2023.

26 ~~e.~~ b. (1) For ~~each~~ the budget year beginning ~~on or after~~
27 July 1, 2024, the amount of each school district's property
28 tax replacement payment shall be the product of the school
29 district's weighted enrollment for the budget year multiplied
30 by the per pupil property tax replacement amount for the budget
31 year calculated under subparagraph (2).

32 (2) The per pupil property tax replacement amount for
33 the budget ~~years~~ year beginning ~~on or after~~ July 1, 2024, is
34 equal to the sum of one hundred fifty-three dollars plus the
35 difference between the following:

1 (a) The regular program state cost per pupil for the budget
2 year beginning July 1, 2024, multiplied by one hundred percent
3 less the regular program foundation base per pupil percentage
4 pursuant to [section 257.1](#) for the applicable budget year under
5 ~~this paragraph~~ beginning July 1, 2024.

6 (b) The regular program state cost per pupil for the budget
7 year beginning July 1, 2021, multiplied by one hundred percent
8 less the regular program foundation base per pupil percentage
9 pursuant to [section 257.1](#) for the applicable budget year under
10 ~~this paragraph~~ beginning July 1, 2024.

11 c. (1) For each budget year beginning on or after July
12 1, 2025, the amount of each school district's property
13 tax replacement payment shall be the product of the school
14 district's weighted enrollment for the budget year multiplied
15 by the per pupil property tax replacement amount for the budget
16 year calculated under subparagraph (2).

17 (2) The per pupil property tax replacement amount for budget
18 years beginning on or after July 1, 2025, is equal to the sum
19 of one hundred fifty-three dollars plus the difference between
20 the following:

21 (a) The regular program state cost per pupil for the budget
22 year beginning July 1, 2025, multiplied by one hundred percent
23 less the regular program foundation base per pupil percentage
24 pursuant to section 257.1 for the applicable budget year under
25 this paragraph.

26 (b) The regular program state cost per pupil for the budget
27 year beginning July 1, 2021, multiplied by one hundred percent
28 less the regular program foundation base per pupil percentage
29 pursuant to section 257.1 for the applicable budget year under
30 this paragraph.

31 Sec. 3. CODE SECTION 257.8 — IMPLEMENTATION. The
32 requirements of section 257.8, subsections 1 and 2, regarding
33 the enactment of bills establishing the state percent of growth
34 and the categorical state percent of growth within thirty
35 days of the transmission of the governor's budget required by

1 February 1 under section 8.21 during the regular legislative
2 session beginning in the base year, do not apply to this
3 division of this Act.

4 Sec. 4. EFFECTIVE DATE. This division of this Act, being
5 deemed of immediate importance, takes effect upon enactment.

6 DIVISION II

7 STATE COST PER PUPIL

8 Sec. 5. Section 257.9, subsection 2, Code 2025, is amended
9 to read as follows:

10 2. *Regular program state cost per pupil for 1992-1993 and*
11 *succeeding years.*

12 a. For the budget year beginning July 1, 1992, and
13 succeeding budget years beginning before July 1, 2018, the
14 regular program state cost per pupil for a budget year is the
15 regular program state cost per pupil for the base year plus the
16 regular program supplemental state aid for the budget year.

17 b. For the budget year beginning July 1, 2018, the regular
18 program state cost per pupil is the regular program state
19 cost per pupil for the base year plus the regular program
20 supplemental state aid for the budget year, plus five dollars.

21 c. For the budget year beginning July 1, 2019, the regular
22 program state cost per pupil is the regular program state
23 cost per pupil for the base year plus the regular program
24 supplemental state aid for the budget year, plus five dollars.

25 d. For the budget year beginning July 1, 2020, the regular
26 program state cost per pupil is the regular program state
27 cost per pupil for the base year plus the regular program
28 supplemental state aid for the budget year, plus ten dollars.

29 e. For the budget year beginning July 1, 2021, the regular
30 program state cost per pupil is the regular program state
31 cost per pupil for the base year plus the regular program
32 supplemental state aid for the budget year, plus ten dollars.

33 f. For the budget year beginning July 1, 2022, the regular
34 program state cost per pupil is the regular program state
35 cost per pupil for the base year plus the regular program

1 supplemental state aid for the budget year, plus five dollars.

2 *g.* For the budget ~~year~~ years beginning July 1, 2023, and
3 ~~succeeding budget years~~ July 1, 2024, the regular program state
4 cost per pupil for a budget year is the regular program state
5 cost per pupil for the base year plus the regular program
6 supplemental state aid for the budget year.

7 *h.* For the budget year beginning July 1, 2025, the regular
8 program state cost per pupil is the regular program state
9 cost per pupil for the base year plus the regular program
10 supplemental state aid for the budget year, plus five dollars.

11 *i.* For the budget year beginning July 1, 2026, and
12 succeeding budget years, the regular program state cost per
13 pupil for a budget year is the regular program state cost per
14 pupil for the base year plus the regular program supplemental
15 state aid for the budget year.

16 Sec. 6. EFFECTIVE DATE. This division of this Act, being
17 deemed of immediate importance, takes effect upon enactment.

18 DIVISION III

19 SUPPLEMENTARY WEIGHTING FOR SHARED OPERATIONAL FUNCTIONS

20 Sec. 7. Section 257.11, subsection 5, paragraph d, Code
21 2025, is amended to read as follows:

22 *d.* Supplementary weighting pursuant to [this subsection](#) shall
23 be available to a school district during the period commencing
24 with the budget year beginning July 1, 2014, through the budget
25 year beginning July 1, 2034. ~~The~~ For budget years beginning
26 prior to July 1, 2025, the maximum amount of additional
27 weighting for which a school district shall be eligible in a
28 budget year is twenty-one additional pupils; and for budget
29 years beginning on or after July 1, 2025, the maximum amount
30 of additional weighting for which a school district shall be
31 eligible in a budget year is twenty-five pupils; provided,
32 however, that for budget years beginning on or after July
33 1, 2024, the supplementary weighting assigned for a shared
34 operational function in the area of a college and career
35 transition counselor or coordinator shall not count toward this

1 maximum amount. Criteria for determining the qualification
2 of operational functions for supplementary weighting shall be
3 determined by the department by rule, through consideration of
4 increased student opportunities.

5 Sec. 8. EFFECTIVE DATE. This division of this Act, being
6 deemed of immediate importance, takes effect upon enactment.>

7 2. Title page, line 5, after <payments,> by inserting
8 <modifying provisions relating to the regular program state
9 cost per pupil and funding for shared operational functions,>>

LYNN EVANS